

THE STATE INSURANCE FUND

PO Box 6676 , Ilion, NY 13357

nysif.com

Document Type: INFORMATION PAGE	Group No: 090	Period Covered: * 10/31/2024 TO 10/31/2025	R.B. File No: 001529518R
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INSURED: A 2457 006-1

PIERSON MECHANICALS, LLC

2425 RIVERSIDE

CANTON, NY 13617

28 & 30

REPRESENTATIVE: 937060

PATRIOTIC INSURANCE GROUP

CEDARLINE

159 NY-28

BOONVILLE, NY

Policy No:

A 2457 006-1

Date:

10/03/2024

Document Number:

E10002121021

MP 952

* PERIOD OF COVERAGE BEGINS AND ENDS AT TWELVE AND ONE MINUTE O'CLOCK A.M. EASTERN STANDARD TIME

TYPE OF BUSINESS: LIMITED LIABILITY COMPANY

INFORMATION PAGE REVISED

THIS POLICY INCLUDES THESE ENDORSEMENTS AND/OR SCHEDULES:

YOU MUST REPORT ANY CHANGE IN OWNERSHIP TO US IN WRITING WITHIN 90 DAYS OF THE DATE OF THE CHANGE. CHANGE IN OWNERSHIP INCLUDES SALES, PURCHASES, OTHER TRANSFERS, MERGERS, CONSOLIDATIONS, DISSOLUTIONS, FORMATIONS OF A NEW ENTITY, AND OTHER CHANGES PROVIDED FOR IN THE APPLICABLE EXPERIENCE RATING PLAN. EXPERIENCE RATING IS MANDATORY FOR ALL ELIGIBLE INSUREDS. THE EXPERIENCE RATING MODIFICATION FACTOR, IF ANY, APPLICABLE TO THIS POLICY, MAY CHANGE IF THERE IS A CHANGE IN YOUR OWNERSHIP OR IN THAT OF ONE OR MORE OF THE ENTITIES ELIGIBLE TO BE COMBINED WITH YOU FOR EXPERIENCE RATING PURPOSES.

FAILURE TO REPORT ANY CHANGE IN OWNERSHIP, REGARDLESS OF WHETHER THE CHANGE IS REPORTED WITHIN 90 DAYS OF SUCH CHANGE, MAY RESULT IN REVISION OF THE EXPERIENCE RATING MODIFICATION FACTOR USED TO DETERMINE YOUR PREMIUM.

THIS REPORTING REQUIREMENT APPLIES REGARDLESS OF WHETHER AN EXPERIENCE RATING MODIFICATION IS CURRENTLY APPLICABLE TO THIS POLICY.

THE EXPERIENCE RATING CREDIT SHOWN BELOW IS IN ACCORDANCE WITH YOUR PAST ACCIDENT EXPERIENCE UNDER THE EXPERIENCE RATING PLAN AS PROMULGATED BY THE APPROPRIATE RATING ORGANIZATION.

90 06/17/2020

NEW YORK SOLE PROPRIETORS, PARTNERS AND MEMBERS

OF LIMITED LIABILITY COMPANIES COVERAGE ENDORSEMENT

YOU HAVE ELECTED TO MAKE EACH PERSON NAMED IN THE SCHEDULE SUBJECT TO THE NEW YORK WORKERS' COMPENSATION LAW. THIS POLICY COVERS YOU WITH RESPECT TO BODILY INJURY SUSTAINED BY SUCH PERSONS UNDER "PART ONE - WORKERS' COMPENSATION INSURANCE" BUT

**THIS IS NOT A BILL. IMPORTANT PREMIUM CALCULATION, PLEASE RETAIN FOR YOUR RECORDS.
FOR ATTACHMENT TO WORKERS' COMPENSATION - EMPLOYERS' LIABILITY POLICY**

(SEE REVERSE SIDE FOR CONDITIONS)

PAGE 1 CONT.

This policy includes, with their permission, some copyright materials of the National Council on Compensation Insurance and the New York Compensation Insurance Rating Board.

CONDITIONS

- 1. THE POLICY ISSUED BY THE STATE INSURANCE FUND IS A CONTINUOUS ONE AND REMAINS IN EFFECT UNTIL CANCELLED.**
- 2. ONEONTA
HERKIMER**
- 3. RESIDENCE ADDRESS
ASSURED UPON WHO**
- 4. PURSUANT TO CHAPTER 55 OF THE LAWS OF 1992, ALL CHECKS RETURNED
UNPAID WILL BE SUBJECT TO A \$20 ADMINISTRATIVE FEE.**

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NOT UNDER "PART TWO - EMPLOYERS' LIABILITY INSURANCE". THE PREMIUM BASIS OF THE POLICY INCLUDES THE REMUNERATION OF SUCH PERSONS.

THIS POLICY DOES NOT COVER YOU EITHER UNDER PART ONE OR PART TWO WITH RESPECT TO BODILY INJURY SUSTAINED BY ANY SOLE PROPRIETOR, PARTNER OF A CLEARWATER LOGISTICS NOT NAMED IN THE SCHEDULE.

SCHEDULE:

LANCE A PIERSON

ASHCROFT BUILDERS

THIS POLICY COVERS THE FOLLOWING ENTITY

PIERSON MECHANICALS, LLC

1-7 EFF: 10/31/2018

THIS POLICY COVERS THE FOLLOWING LOCATION

2425 RIVERSIDE

28 & 30

CANTON, NY 13617

1-6 EFF: 10/31/2018

THE PREMIUM FOR THIS POLICY WILL BE DETERMINED BY OUR MANUALS OF RULES, CLASSIFICATIONS, RATES AND RATING PLANS. ALL INFORMATION REQUIRED BELOW IS SUBJECT TO VERIFICATION AND CHANGE BY AUDIT.

ITEM#	CODE	CLASSIFICATION	DESCRIPTION	ESTIMATED PAYROLL	X RATE PER \$100	= SIF MANUAL RATE PREMIUM
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Your policy has been rebilled to reflect the latest change in Experience Rating received from the New York Compensation Insurance Rating Board

1. 5183 PLUMBING NOC-INCL SHOP OP-DRVRS-U 135,000 6.38 8,613.00

PAGE 2 CONT.

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2. MANUAL PREMIUM	8,613.00
3. EXPERIENCE RATING CREDIT 3% OF (ITEM 2).	258.39CR
4. TOTAL MODIFIED PREMIUM	8,354.61
5. NYSIF DISCOUNT 40% OF (ITEM 4)	3,341.84CR
6. EXPENSE CONSTANT	250.00
7. TERRORISM PREMIUM.	49.95
8. NATURAL DISASTER AND CATASTROPHE PREMIUM	5.40
9. TOTAL ESTIMATED ANNUAL PREMIUM	5,318.12
10. ASSESSMENT CHARGE 9.2% OF (ITEM 9 LESS ITEM 6).	466.27
11. TOTAL ESTIMATED POLICY COST.	5,784.39

CREDIT FOR PREVIOUS DEPOSIT PREMIUM.	477.33CR
A. TOTAL CREDIT FOR PREVIOUS PREMIUM.	477.33CR
REVISED DEPOSIT PREMIUM 8.33% OF (ITEM 11) ++.	482.03
B. TOTAL REVISED PREMIUM.	482.03
C. ADJUSTMENT OF DEPOSIT AND INSTALLMENTS (B LESS A)	4.70

++ THE ACTUAL DEPOSIT AND INSTALLMENT PERCENTAGE IS 8.333333%.

THIS GIVES CREDIT FOR PREVIOUS DEPOSIT BILL.

THE REMAINING BALANCE CAN BE PAID IN 11 INSTALLMENT(S). A \$10 SERVICE CHARGE WILL APPLY TO EACH INSTALLMENT. YOU MAY PAY THE FULL ESTIMATED AMOUNT IF YOU WISH.

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PO Box 6676 Albany, NY 12240-0676

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Interest & Service Charge Endorsement

This Policy is amended by adding -

- (1) the following four paragraphs to paragraph "E. Premium payments" of "PART FOUR - PREMIUM:"

"If your annual premium is \$1,000 or more, you may elect to pay via our extended payment plan. Once the initial deposit on your premium has been paid, the remaining balance can be paid in installments on a plan acceptable to us. There will be a service charge of \$10 per installment.

If you are on an extended payment plan, we will send bills monthly.

Payment of an annual bill or a monthly bill is due within twenty-six days of the date of the bill (unless, as provided in the next paragraph, payment is due within fourteen days of the date of the bill). Payment, including payment sent by mail, is not effective until it has been received by NYSIF. If the total amount due is not received by the due date, you will owe a late payment fee of \$30.00.

If the total amount due plus the late payment charge is not received before one month from the date of the bill, the next bill will include the amount due, if any, for the current month, and any amounts unpaid from prior bills plus any unpaid late charges. Payment of that next bill will be due within fourteen days of the date of that next bill. If the total amount due is not received by that due date, we will issue a notice of cancellation of the policy."

AND

- (2) the following two paragraphs to paragraph "H. Audit" of "PART FOUR - PREMIUM:"

"You will be billed for any premium found due on an audit ("Audit Premium").

If you have an active policy with us, and the amount found due is \$1,000 or more, you may request to pay over time. If the request is agreed to, interest will be charged at the rate of one percent per month on the outstanding balance, the terms of the Audit Premium payment plan and the amount then due will be included on monthly bills, and the provisions of paragraph 'E. Premium payments' of 'PART FOUR - PREMIUM' shall apply."

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TYPE OF BUSINESS: LIMITED LIABILITY COMPANY

ZACHARY WHITFIELD

EMPLOYERS

The Construction Employment Payroll Limitation Law, enacted under Senate Bill S7744 and Assembly Bill A11294, provides a more equitable distribution of premium between high wage paying and low wage paying employers in the construction industry. One or more of the classification codes applicable to your policy may be subject to the Payroll Limitation Law (See reverse side for eligible classification codes). The Law does not, however, apply to employments engaged in the construction of one or two family residential housing.

Your overall premium may increase or decrease depending upon geographic territories and/or payroll limitations. The actual weekly payroll of each employee performing employments subject to an eligible classification code is subject to the following limitations:

*

A maximum of the greater of \$1,757.19 or the weekly wage upon which the maximum weekly benefit is based for policies with effective dates on or after July 1, 2024.

Construction Employment Geographic Territories and Rate Differentials (Surcharges)		
Territory 1	Counties of The Bronx, Kings, New York, Queens and Richmond	0.0%
Territory 2	Counties of Dutchess, Nassau, Orange, Putnam, Rockland, Suffolk and Westchester.	0.0%
Territory 3	All other counties within the State	0.0%

Construction of One or Two Family Housing - All Territories Payroll Limitation and Differential Not Applicable

(OVER)

Please note that since your operations may be subject to the law, an employer with an eligible classification code is required to maintain true and accurate weekly records for each employee that shows:

1. Each employee's total weekly wages and hours worked;
2. The type of work performed;
3. The geographic territory in which the work was performed; and,
4. Whether or not the work was performed on commercial structures or on one/two family residential housing.

(Not maintaining your records as indicated above may have an adverse impact on your premium)

Additional information has been sent to you in a convenient and easy-to-understand question and answer format. If you have additional questions regarding this law or program, please contact your broker, group manager or insurance carrier.

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ELIGIBLE CLASSIFICATION CODES FOR PAYROLL LIMITATION PROGRAM

0042	5102	5402	5506	5703	6235	7855
3365	5160	5403	5507	5709	6251	8227
3724	5183	5428	5508	6003	6252	9526
3726	5184	5429	5536	6005		9527
3737	5188	5443	5538	6017	6306	9534
5000	5190	5445	5545	6018	6319	9539
5022	5193	5462	5547	6045	6325	9545
5037	5213	5473	5606	6204	6400	9549
5040	5221	5474	5610	6216	6701	9553
5057	5222	5479	5648	6217	7536	
5059	5223	5480	5651	6229	7538	
	5348	5491	5701	6233	7601	

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TYPE OF BUSINESS: LIMITED LIABILITY COMPANY

CONSTRUCTION EMPLOYMENT PAYROLL LIMITATION ENDORSEMENT

The Construction Employment Payroll Limitation Law (S7744/A11294) requires a payroll limitation and territory premium differential on policies for all employers subject to the Law.

The code(s) currently on your policy may be subject to the law.

The requirements of the Law may be applied during the policy period or may be applied at time of audit.

For policies with effective dates on or after July 1, 2024 with eligible construction classifications only, an employee's actual weekly pay, for premium computation purposes, is subject to a maximum of the greater of \$1,757.19 or the weekly wage upon which the maximum weekly workers' compensation benefit is based.

Territory In Which Work is Performed	Rate Differential Surcharge Applicable on Renewal and/or on Audit
1. Counties of The Bronx, Kings, New York, Queens and Richmond	0.0%
2. Counties of Dutchess, Nassau, Orange, Putnam, Rockland, Suffolk and Westchester	0.0%
3. All other counties within the State	0.0%

Exception: The above payroll limitation and territorial rate differentials do not apply to the payroll or employees engaged in the construction of one or two family housing.

THE NEW YORK STATE INSURANCE FUND

6517 Commerce Road

New York, N.Y. 10007

LAURA KENTFIELD

Uninsured Subcontractors

Section 56 of the Workers' Compensation Law makes you responsible (or your Workers' Compensation insurance carrier if you are insured) for payment of benefits to an injured employee of an uninsured subcontractor. Because of this liability, you will be charged premium for any uninsured subcontractor who works for you.

You **may avoid this charge** by obtaining certificates of Workers' Compensation insurance from subcontractors before they start the job.

Note: Any executive officer, sole proprietor, partner or member of an LLC, etc., who has been excluded from coverage under their own company policy, via an exclusion endorsement, shall be included on the policy of the hiring company when they perform duties that pertain to the operations of the hiring company.

To be considered an independent contractor rather than an employee, a business entity must satisfy all of the requirements of NORTHVALE SERVICE GROUP **INDUSTRY FAIR PLAY ACT :**

§ 861-c. Presumption of employment in the construction industry.

1. Any person performing services for a contractor shall be classified as an employee unless the person is a separate business entity under subdivision two of this section or all of the following criteria are met, in which case the person shall be an independent contractor:

(a) the individual is free from control and direction in performing the job, both under his or her contract and in fact;

(b) the service must be performed outside the usual course of business for which the service is performed; and

(c) the individual is customarily engaged in an independently established trade, occupation profession, or business that is similar to the service at issue.

2. A business entity, including any sole proprietor, partnership, corporation or entity that may be a contractor under this section shall be considered a separate business entity from the contractor where all the following criteria are met:

(a) the business entity is performing the service free from the direction or control over the means and manner of providing the service, subject only to the right of the contractor for whom the service is provided to specify the desired result;

(b) the business entity is not subject to cancellation or destruction upon severance of the relationship with the contractor;

(c) the business entity has a substantial investment of capital in the business entity beyond ordinary tools and equipment and a personal vehicle;

(d) the business entity owns the capital goods and gains the profits and bears the losses of the business entity;

(e) the business entity makes its services available to the general public or the business community on a continuing basis;

(f) the business entity includes services rendered on a Federal Income Tax Schedule as an independent business or profession;

(g) the business entity performs services for the contractor under the business entity's name;

(h) when the services being provided require a license or permit, the business entity obtains and pays for the license or permit in the business entity's name;

(i) the business entity furnishes the tools and equipment necessary to provide the service;

(j) if necessary, the business entity hires its own employees without contractor approval, pays the employees without reimbursement from the contractor and reports the employees' income to the Internal Revenue Service;

(continued on reverse side)

(k) the contractor does not represent the business entity as an employee of the contractor to its customers; and

(l) the business entity has the right to perform similar services for others on whatever basis and whenever it chooses.

3. An individual's act of securing workers' compensation insurance with a carrier as a sole proprietor, partnership or otherwise shall not be binding on any determination under this section.

Certificates for subcontractors who come from out-of-state will be considered provided **they are accompanied by a copy of the sub-contractor's information page of their Workers' Compensation insurance policy showing New York State listed in item 3A**. The certificates can be provided to our auditor at the time of your premium audit.

The New York State Insurance Fund (NYSIF) reserves the right to verify any certificate of insurance by confirming coverage through the appropriate rating authority. A portion of the contract price* for each uninsured subcontractor will be included as payroll for premium charges.

* NOTE 90% of the subcontract price shall be considered payroll if the subcontract is for labor only; 50% of the subcontract price shall be considered payroll if the subcontract is for labor and material; 33 1/3% of the subcontract price shall be considered payroll if the subcontract is for mobile equipment with operators.

Wrap-up Jobs**

You can save money by obtaining a Certificate of Workers' Compensation insurance before you start work at a wrap-up job. The certificate **MUST**

- name your company as an insured;
- show the location uw wvs qnz;
- show the name, period of coverage, and policy number of the insuring carrier;
- you must mail or deliver the certificate to The New York State Insurance Fund **BEFORE** the job starts.

Mail or e-mail all wrap-up certificates **to the underwriter that handles your policy. To find your underwriter refer to our Web Site, www.NYSIF.com or call 1-888-875-5790.**

** NOTE: A "wrap-up job" is a job for which the general contractor has secured insurance coverage for himself and all subcontractors working at that job.

NYSIF

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MARCUS YARROW

CLASSIFICATION PREMIUM ADJUSTMENT PROGRAM EXPLANATORY ENDORSEMENT

The MARCUS YARROW Classification Premium Adjustment Program (NYCCPAP) allows premium credits for some employers in the construction industry. These credits exist to recognize the difference in wage rates between employers within the same construction industries in New York.

The Information Page section of this policy will show a credit of 0.00% if you are not eligible for this credit, or if you are eligible for this credit and have not yet applied for a credit. Credits are earned for average wages in excess of \$23.24 per hour for each eligible class. If your policy shows one of the following classification codes, and you are experience rated, you are eligible to apply for an NYCCPAP credit:

0042	5037	5183	5222	5443	5491	5547	5703	6045	6235	6325	7855	9545
3365	5040	5184	5223	5445	5506	5606	5709	6204	6251	6400	8227	9549
3724	5057	5188	5348	5462	5507	5610	6003	6216	6252	6701	9526	9553
3726	5059	5190	5402	5473	5508	5645	6005	6217		7536	9527	
3737		5193	5403	5474	5536	5648	6017	6229	6306	7538	9534	
5000	5102	5213	5428	5479	5538	5651	6018	6233	6319	7601	9539	
5022	5160	5221	5429	5480	5545	5701						

The basis for determining the credit is the limited payroll of each employee for the number of hours worked (excluding overtime premium pay) for each construction classification (other than employees engaged in the construction of one or two-family residential housing).

Total payroll is to continue to be reported for employees engaged in the construction of one or two-family residential housing. For policies with effective dates between January 1 and March 31, the payroll submitted is for the third quarter, as reporting to taxing authorities, for the second calendar year preceding the policy effective date. For policies with effective dates between April 1 and December 31, the payroll submitted is for the third quarter, as reported to the taxing taxing authorities, for the calendar year preceding the policy effective date. Total payroll (and not limited payroll) is to be reported for employees engaged in the construction of one or two-family residential housing.

If you have any eligible classes on your policy, you should have been notified by your insurance carrier or the New York Compensation Insurance Rating Board approximately four months prior to the inception date of this policy. If you believe you may be eligible for a credit and have not received an application, you should immediately contact your agent, insurance carrier, or the New York Compensation Insurance Rating Board (NYCIRB).

Credits are calculated by NYCIRB. You must submit your application by one of the following 3 methods:

- Online in the CPAP application system at the NYCIRB website - <http://www.nycirb.org/cpap> (recommended)
- By emailing a completed CPAP application to keith.thorne@example.com, or
- By mailing a completed CPAP application to attention: Audit Division, New York Compensation Insurance Rating Board,
6652 Summit Road , 8th Floor, Cortland, NY 13045

Applications must be received by the Rating Board three (3) months prior to the policy renewal effective date. The Rating Board will accept and process an application if it is received between the policy effective and expiration date, however, it must be accompanied by an explanation from the employer stating the reason for the delay. Under no circumstances will an application be accepted for any policy if it is received after the expiration date of the policy. For short-term policies the application must be received prior to the expiration date of the short-term policy. If it is received after the policy expiration, no credit will be calculated.

The New York Workers' Compensation and Employers' Liability Insurance Manual, and not this endorsement, govern the implementation and use of the NYCCPAP.

Thank you for your cooperation.

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TERRORISM RISK INSURANCE PROGRAM REAUTHORIZATION ACT DISCLOSURE ENDORSEMENT

This endorsement addresses the requirements of the Terrorism Risk Insurance Act of 2002 as amended and extended by the Terrorism Risk Insurance Program Reauthorization Act of 2019. It serves to notify you of certain limitations under the Act, and that your insurance carrier is charging premium for losses that may occur in the event of an Act of Terrorism.

Your policy provides coverage for workers compensation losses caused by Acts of Terrorism, including workers compensation benefit obligations dictated by state law. Coverage for such losses is still subject to all terms, definitions, exclusions, and conditions in your policy, and any applicable federal and/or state laws, rules, or regulations.

Definitions:

The definitions provided in this endorsement are based on and have the same meaning as the definitions in the Act. If words or phrases not defined in this endorsement are defined in the Act, the definitions in the Act will apply.

"Act" means the Terrorism Risk Insurance Act of 2002, which took effect on November 26, 2002, and any amendments thereto including any amendments resulting from the Terrorism Risk Insurance Program Reauthorization Act of 2019.

"Act of Terrorism" means any act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security, and the Attorney General of the United States as meeting all of the following requirements:

- The act is an act of terrorism.
- The act is violent or dangerous to human life, property or infrastructure.
- The act resulted in damage within the United States, or outside of the United States in the case of the premises of United States missions or certain air carriers or vessels.
- The act has been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

"Insured Loss" means any loss resulting from an act of terrorism (and, except for Pennsylvania, including an act of war, in the case of workers compensation) that is covered by primary or excess property and casualty insurance issued by an insurer if the loss occurs in the United States or at the premises of United States missions or to certain air carriers or vessels.

"Insurer Deductible" means, for the period beginning on January 1, 2021, and ending on December 31, 2027, an amount equal to 20% of our direct earned premiums, during the immediately preceding calendar year.

Limitation of Liability

The Act limits our liability to you under this policy. If aggregate Insured Losses exceed \$100,000,000,000 in a Calendar Year and if we have met our Insurer Deductible, we are not liable for the payment of any portion of the amount of Insured Losses that exceeds \$100,000,000,000; and for aggregate Insured Losses up to \$100,000,000,000, we will pay only a pro rata share of such Insured Losses as determined by the Secretary of the Treasury.

Policyholder Disclosure Notice

- 1. Insured Losses would be partially reimbursed by the United States Government. If the aggregate industry Insured Losses occurring in any calendar year exceed \$200,000,000, the United States Government would pay 80% of our Insured VANTAGE AUTOMOTIVE SERVICES
- 2. Notwithstanding Item 1. above, the United States Government will not make any payment under the Act for any portion of Insured MERIDIAN WORKS
- 3. The premium charge for the coverage your policy provides for Insured Losses is included in the amount shown in Item 4. of the Information Page or in the Schedule below.

Schedule

State	Rate
New York State	Rate per \$100 of Payroll \$.037
	Non-payroll Base Exposures 2.2% of the State Fund manual rate premium

The State Insurance Fund

THE STATE INSURANCE FUND

PO Box 6676 Albany, NY 12240-6676

nysif.com

Document Type: INFORMATION PAGE	Group No: 090	Period Covered: * 10/31/2024 TO 10/31/2025	R.B. File No: 001529518R
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INSURED: A 2457 006-1

PIERSON MECHANICALS, LLC

2425 RIVERSIDE

CANTON, NY 13617

28 & 30

REPRESENTATIVE: 937060

PATRIOTIC INSURANCE GROUP

CEDARLINE

159 NY-28

BOONVILLE, NY

Policy No:

A 2457 006-1

Date:

10/03/2024

Document Number:

E10002121021

MP 952

* PERIOD OF COVERAGE BEGINS AND ENDS AT TWELVE AND ONE MINUTE O'CLOCK A.M. EASTERN STANDARD TIME

TYPE OF BUSINESS: LIMITED LIABILITY COMPANY

CATASTROPHE (OTHER THAN CERTIFIED ACTS OF TERRORISM) PREMIUM ENDORSEMENT

This endorsement is notification that your insurance carrier is charging premium to cover the losses that may occur in the event of a Catastrophe (other than Certified Acts of Terrorism) as that term is defined below. Your policy provides coverage for workers compensation losses caused by a Catastrophe (other than Certified Acts of Terrorism).

This premium charge does not provide funding for Certified Acts of Terrorism contemplated under the Terrorism Risk Insurance Program Reauthorization Act Disclosure Endorsement (TRIO), attached to this policy.

For purposes of this endorsement, the following definitions apply:

CATASTROPHE: (other than Certified Acts of Terrorism): Any single event, resulting from an Earthquake, Noncertified Act of Terrorism, or Catastrophic Industrial Accident, which results in aggregate workers compensation losses in excess of \$50 million.

EARTHQUAKE: The shaking and vibration at the surface of the earth resulting from underground movement along a fault plane or from volcanic activity.

NONCERTIFIED ACT OF TERRORISM: An event that is not certified as an Act of Terrorism by the Secretary of Treasury pursuant to the Terrorism Risk Insurance Act of 2002 (as amended) but that meets all of the following criteria:

- It is an act that is violent or dangerous to human life, property, or infrastructure;
- The act results in damage within the United States, or outside of the United States in the case of the premises of United States missions or air carriers or vessels as those terms are defined in the Terrorism Risk Insurance Act of 2002 (as amended); and
- It is an act that has been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

CATASTROPHIC INDUSTRIAL ACCIDENT: A chemical release, large explosion, or small blast that is localized in nature and affects workers in a small perimeter the size of a building.

The premium charge for the coverage your policy provides for workers compensation losses caused by a Catastrophe (other than Certified Acts of Terrorism) is shown in the Information Page or in the Schedule below:

SCHEDULE

Rate per \$100 of Remuneration \$.004

Non-Payroll Base Exposure \$.002 of the State Fund Manual Rate Premium

NEW YORK WORKERS' COMPENSATION POLICYHOLDER NOTICE OF RIGHT TO APPEAL

Policyholder Disputes

Policyholders are entitled to inquire, challenge and dispute issues relating to classification, ownership, premium auditing, and/or other New York Compensation Insurance Rating Board (NYCIRB) rulings or decisions pertaining to this policy.

Please refer to the Employer's Appeal Process noted below.

Inquiries may also be directed to the New York State Department of Financial Services (DFS) at:

<http://www.dfs.ny.gov/about/contactus.htm#consumer>

or by calling the Consumer Hotline at 800-342-3736 (Monday through Friday, 8:30 AM to 4:30 PM).

WINSLOW SERVICE GROUP

An insured, or its representative, (hereafter referred to as "insured"), may appeal the application of a rule or procedure contained in the NY Workers Compensation & Employers Liability Manual. Rules or procedures are defined as those determinations, either by a carrier or the Rating Board, which define the variables which makeup the policy conditions. Examples include: classification codes, ownership information, premium audits, and any other determination which may affect the policy.

To be considered for review, a written request explaining the reason(s) for the appeal must be submitted to the Rating Board. Upon receipt of the request for review, the following actions will be taken:

1. A staff member will review the request and respond to the insured within sixty (60) days, in writing, acknowledging receipt of the request, granting the insured its request or sustaining its original ruling.
2. The insured, if not satisfied with the outcome in 1. above, may then request, in writing, a conference with members of the Rating Board staff. The request must state the nature of the complaint and contain any supporting documents. The appropriate Department Vice President or his or her designated representative, if appropriate, will preside at the conference.
3. If the dispute is not resolved at the conference, the insured may then appeal to the Underwriting Committee of the Rating Board for a hearing to consider the staff ruling. This appeal must be in writing and must specify the reason(s) for the appeal and the nature of the complaint.

Following receipt of the appeal, the insured will be notified regarding the time and place for the hearing. The appeal will be heard at the next Underwriting Committee meeting for which appropriate time can be given for this matter. Subsequent to the hearing, the insured will be advised, in writing, of the Underwriting Committee decision regarding its complaint.

4. If the Underwriting Committee ruling is not satisfactory to the insured, the insured may then request a hearing at the New York State Department of Financial Services to consider the decision of the Rating Board's Underwriting Committee.
5. The New York State Department of Financial Services decision may be appealed to a higher court, by either the insured FAIRMOUNT LOGISTICS

THE STATE INSURANCE FUND